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John Doe vs Delphi Schools, Inc., et al.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication

Moving Party: Defendant Delphi Schools, Inc.

Responding Party: Plaintiff John Doe

Tentative Ruling: Grant in part, deny in part

BACKGROUND

On October 17, 2024, Plaintiff John Doe ("Plaintiff") filed a complaint against Defendants Delphi Schools, Inc. ("Defendant"), Randolph Clifford Jackson ("Jackson"), and Roes 1 through 25, alleging the following causes of action: (1) sexual assault of a minor; (2) negligent hiring, supervision and/or retention of Jackson; and (3) negligent supervision of Plaintiff.

Defendant now moves for summary judgment, or in the alternative, summary adjudication as to the negligence causes of action.

Plaintiff opposes, and Defendant replies.

MOVING PARTY POSITION

Defendant argues that Plaintiff's second cause of action for negligent hiring, supervision, and retention of Jackson fails as a matter of law because Plaintiff cannot prove that Defendant had actual or constructive notice of Jackson's sexual propensities before his departure from Delphi on June 6, 2014. Jackson was properly screened and had no prior disciplinary or criminal history before Defendant hired him as a teacher and coach. Defendant also never received any prior report or complaints of sexual misconduct by Jackson, as the only reported inappropriate conversation between Jackson and a student in November of 2013 was determined by Defendant to be entirely uncorroborated following an internal investigation.

Defendant argues that Plaintiff's third cause of action for negligent supervision also fails as a matter of law because Defendant did not have actual or constructive notice of any prior wrongdoing by Jackson under the undisputed facts.

Defendant finally argues that it had no mandatory duty to report Jackson's conduct under California's Child Abuse and Neglect Reporting Act ("CANRA") because the reported conduct in November of 2013 did not constitute "child abuse or neglect" within the meaning of the Act.

OPPOSITION

Plaintiff initially contends that Defendant failed to carry its initial burden of production because it relies on two unsworn declarations to support its motion. Even if there were admissible evidence in support of this motion, Defendant's investigation into Jackson's reported misconduct in November of 2013 raises a triable issue as to whether Defendant had constructive knowledge that Jackson posed a potential risk of harm to students such as Plaintiff.

Plaintiff contends that triable issues of material fact exist as to whether Defendant was negligent in its supervision and retention of Jackson and in its supervision of Plaintiff, as Defendant had actual notice of Jackson's unfitness due to the reported sexual assault in November of 2013, and as Defendant had constructive notice of Jackson's improper interactions with Delphi's students.

REPLY

Defendant initially responds that Plaintiff concedes that Delphi was not negligent in Jackson's hiring and that summary adjudication must be granted on this issue.

Defendant responds that Plaintiff fails to present triable issues of material fact as to whether Delphi had prior knowledge of Jackson's sexual misconduct in the period between 2011 and 2014.

Defendant further responds that Plaintiff fails to present any evidence to support a breach of any supervisory duty owed to Plaintiff. In addition, Defendant did not have a mandatory duty to report Jackson under CANRA based on the information known to it at that time.

Defendant also submits the corrected declarations of Linda Hanson and Karen Dale.

ANALYSIS

I. Legal Standard

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].) Further, in line with Aguilar, "[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted." (Fisherman's Wharf Bay Cruise Corp. v. Superior Court (2003) 114

Cal.App.4th 309, 320.)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [cleaned up].) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Id. at p. 840 [cleaned up]; see, also, Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

II. Evidentiary Objections

The Court rules on Plaintiff’s evidentiary objections to the declarations of Karen Dale and Linda Hanson as follows: Overruled. (Gall v. Smith & Nephew, Inc. (2021) 71 Cal.App.5th 117, 125 [a declaration that fails to comply with Code of Civil Procedure section 2015.5 may be deemed harmless by a trial court if the procedural defects are cured prior to the hearing].)

The Court declines to rule on Defendant’s unnumbered evidentiary objections, as they have no effect on the ruling herein.

III. Discussion

To start, “[t]he pleadings play a key role in a summary judgment motion” because “the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, emphasis in original.)

In his complaint, Plaintiff alleges that, beginning in 2011, he was repeatedly sexually abused by Jackson while enrolled as a student at Delphi Academy of Los Angeles (the “Academy”). (Compl. ¶ 1.) During the alleged period in which the abuse took place, Jackson was employed by Defendant as a coach and athletic director at the Academy. (Id. ¶ 3.) Jackson openly exhibited grooming behaviors toward one or more male students during this period, including “spending time alone with students after school hours, touching students inappropriately, exposing his genitals to students, driving students in his car to and/or from school alone, making sexually inappropriate comments, showing pornographic images to minor students, and buying meals and/or gifts for one or more male students.” (Id. ¶5.) Upon information and belief, Plaintiff further alleges that Karen Dale, Defendant’s Head of School at the Academy, was made aware of Jackson’s inappropriate behavior with one or more minor, male students and that Dale took no action to suspend Jackson from teaching at the Academy and that she failed to report Jackson’s behavior to law enforcement or Child Protective Services (“CPS”). (Id. ¶ 6.)

In seeking summary judgment, Defendant argues that Plaintiff cannot prove that Defendant knew or should have known that Jackson posed a foreseeable risk of harm to students and that, absent this proof of notice, Plaintiff’s claims fail as a matter of law.

A. Actual or Constructive Knowledge

“[A] school district and its employees have a special relationship with the district’s pupils, a relationship arising from the mandatory character of school attendance and the comprehensive control over students exercised by school personnel, ‘analogous in many ways to the relationship between parents and their children.’ [Citation.]” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 869; Ratcliff v. The Roman Catholic Archbishop of Los Angeles (2022) 79 Cal.App.5th 982, 1007 [recognizing that this same special relationship exists between private religious schools and their

students].) Because of this special relationship, “school administrators have a duty to protect students from sexual abuse by school employees, even if the school does not have actual knowledge of a particular employee’s history of committing, or propensity to commit, such abuse.” (Doe v. Lawndale Elementary School Dist. (2021) 72 Cal.App.5th 113, 119.) Accordingly, a school “may be liable for hiring, supervising, or retaining an employee if the [school’s] supervisory personnel had actual or constructive knowledge of the employee’s dangerous propensities.” (Rancho Cucamonga Central School Dist. v. Superior Court (2025) 116 Cal.App.5th 718, 721.)

A supervisory employee’s constructive knowledge of an assaultive employee’s propensity to harm students “may be shown by circumstantial evidence ‘which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts.’ ” (Roe v. Hesperia Unified School District (2022) 85 Cal.App.5th 13, 26 [quoting Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1206-1207].)

Though it is undisputed that Plaintiff did not report his alleged abuse by Jackson to any of Defendant’s employees between 2011 to 2014 and that Plaintiff first disclosed the alleged abuse in 2022, these facts alone do not establish that Defendant’s supervisory employees lacked actual or constructive knowledge of Jackson’s dangerous propensities. (Defendant’s Separate Statement of Undisputed Facts (“SSUMF”) ¶¶ 6-7.) In addressing its knowledge of Jackson’s behavior at that time, Defendant submits the declarations of Linda Hanson, the Academy’s ethics advisor during the relevant period, and Dale as evidentiary support for the fact that Defendant “never received any reports from any staff member, parents or students regarding complaints of sexual misconduct by Jackson at any time between 2011 to 2014.” (SSUMF ¶ 8.) Relying on this same evidence and attached exhibits thereto, Defendant also asserts that the only complaint Defendant “ever received regarding concerns of inappropriate conversation between Jackson and a student was a report made in November of 2013” and that “[t]he reported inappropriate conversation in November of 2013 did not contain any allegations that Mr. Jackson exposed himself or touched the student inappropriately.” (SSUMF ¶¶ 10, 11.) The parties refer to this student as John Doe 2.

Based on this evidence, the Court finds that Defendant failed to make a prima facie showing that it lacked actual or constructive knowledge of Jackson’s dangerous propensities. Regarding the reported incident in November of 2013, Dale states that she was informed that Jackson had asked John Doe 2 “weird questions about porn and masturbation, teased him about it and then showed him a porn app on his phone” and had instructed John Doe 2 on how to “cover his tracks with an app on his so others couldn’t find his history” and to not tell anyone about their conversation. (Dale Decl. ¶ 13.) In addition, Hanson states that she investigated the reported incident and found no corroborating evidence that Jackson had done anything sexually inappropriate with John Doe 2. (Hanson Decl. ¶ 7.) However, irrespective of the outcome of this investigation, the initial report that was communicated to Dale and Hanson should have reasonably triggered their suspicion of Jackson’s inappropriate behavior, particularly as the father of John Doe 2 had previously expressed his concerns that Jackson and John Doe 2 were texting frequently at night to Dale in July of 2013. (Dale Decl. ¶ 12.)

Even if the Court were to find Defendant’s evidentiary showing sufficient to carry its initial burden of proof, Plaintiff’s submitted evidence establishes triable issues as to Defendant’s actual or constructive knowledge. Specifically, in her deposition testimony, the mother of John Doe 2 stated that she and her husband told Dale that their son had informed them that Jackson had showed him pornography and masturbated in front of him. (Allard Decl. ¶ 15, Exh. 14, at p. 25:10-21.) Although the record fails to illuminate whether the initial report by the parent representative and the subsequent communication by John Doe 2’s parents concern the same alleged incident of abuse or inappropriate behavior by Jackson, the mother’s testimony establishes that Dale was directly informed of alleged sexual abuse by Jackson in 2013. Accordingly, despite Defendant’s challenge to the credibility of this testimony, the Court finds that Plaintiff’s evidence demonstrates the existence of a triable issue of material fact exists as to whether Defendant had actual or constructive knowledge of Jackson’s propensity to harm students. (Cf. Rancho Cucamonga Central School Dist., supra, 116 Cal.App.5th a p. 722 [concluding that the school district was entitled to summary judgment only when there was no evidence that any district employees had either actual or constructive knowledge of the program director’s dangerous propensities]; see, also, AARTS Productions, Inc. v. Crocker National Bank (1986) 179 Cal.App.3d 1061, 1065 [noting that a court generally cannot resolve credibility issues at summary judgment].)

Thus, the motion for summary judgment is denied.

B. Negligent Hiring and Supervision

In the alternative, Defendant seeks summary adjudication on the issue of whether it acted negligently in hiring Jackson. Here, it is undisputed that Defendant screened Jackson prior to his hiring and that Defendant obtained no evidence through this screening process that suggested he would be unfit for his position or pose a risk of harm to students, including no prior criminal history or open arrest records. (SSUMF ¶¶ 1, 3-4.) Accordingly, as there is no evidence establishing that Defendant knew or should have known of Jackson's unfitness prior to his hiring in 2010, and as there is no dispute of any material fact regarding this issue, the Court grants summary adjudication of this issue.

Defendant also seeks summary adjudication on the issue of whether it acted negligently in the supervision or retention of Jackson. However, given the Court's finding of a triable issue of material fact as to whether Defendant knew of Jackson's propensity to harm students in the period between 2011 and 2014, summary adjudication of this issue is denied.

C. Negligent Supervision of Plaintiff

In addition, Defendant seeks summary adjudication on the issue of whether its supervision of Plaintiff was negligent. "With respect to a claim that the district negligently failed to supervise students, plaintiffs must allege facts demonstrating that school personnel failed to exercise ordinary prudence. [Citations.] Either a total lack of supervision [citation] or ineffective supervision [citation] may constitute a lack of ordinary care on the part of those responsible for student supervision. [Citations.]" (Rancho Cucamonga Central School Dist., supra, 116 Cal.App.5th at pp. 722-723, internal quotes omitted.)

In seeking summary adjudication of this issue, Defendant set forth the following material fact: "Plaintiff's parent signed a waiver allowing for faculty members to transport the students in their personal vehicles for school-related functions as part of their enrollment process at Delphi Academy." (SSUMF ¶ 21.) However, this fact alone does not establish the nonexistence of a triable issue as to whether Defendant failed to exercise ordinary care in supervising Plaintiffs on and off campus. Plaintiff alleges that he experienced abuse by Jackson both "on school grounds during and/or after instructional hours" and off school grounds when Jackson transported Plaintiff in his personal vehicle. (Compl. ¶ 25.) Specifically, Plaintiff alleges that Jackson sexually abused him "on school grounds in the Athletics office, the gym, the sports shed, and in a boys' restroom." (Id. ¶ 8.) As the pleadings determine what issues are material, and as the Court has determined that a triable issue of material fact exists as to whether Defendant knew of Jackson's propensity to harm students, Defendant fails to carry its initial burden of showing that Plaintiff cannot establish either Defendant's total lack of supervision off campus or its ineffective supervision of him on campus between 2011 and 2014.

Thus, summary adjudication of this issue is denied.

D. Duty to Report Under CANRA

Defendant finally seeks summary adjudication on the issue of whether it had a mandatory duty to report Jackson's alleged abuse under CANRA. Here, in support of its request for summary adjudication on this issue, Defendant sets forth the following fact: "The reported November 2013 interaction between Jackson and the male student did not involve any physical touching, sexual assault, production or distribution of child pornography, or any act causing the student to engage in a sexual performance." (SSUMF ¶ 22.)

CANRA requires mandated reporters "to make a report to a law enforcement agency or a county welfare department 'whenever the mandated reporter, in [the mandated reporter's] professional capacity or within the scope of [the mandated reporter's] employment, has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect.' [Citation.]" (Roe, supra, 85 Cal.App.5th at pp. 31-32.) "A mandated reporter has a 'reasonable suspicion' when 'it is objectively reasonable for a person to entertain a suspicion, based upon facts that could cause a reasonable person in a like position, drawing, when appropriate, on his or her training and experience, to suspect child abuse or neglect. "Reasonable suspicion" does not require certainty that child abuse or neglect has occurred nor does it require a specific medical indication of child abuse or neglect; any "reasonable suspicion" is sufficient.' [Citation.]" (B.H. v. County of San Bernardino (2015) 62 Cal.4th 168, 186.) "Failure to make the required report constitutes a misdemeanor. [Citation.] In addition, a failure to make such a report may give rise to a claim of negligence per se when a breach of the duty to report causes injury." (Roe, supra, 85 Cal.App.5th at p. 32.)

Under CANRA, a mandated reporter includes the following definition: "An employee or administrator of a public or private postsecondary educational institution, whose duties bring the administrator or employee into contact with children on a regular basis, or who supervises those whose duties bring the administrator or employee into contact with children on a regular basis, as to child abuse or neglect occurring on that institution's premises or at an official activity of, or program conducted by, the institution." (Pen. Code § 11165.7, subd. (a)(41).) Reportable abuse encapsulates sexual assault, which includes the following conduct: "The intentional masturbation of the perpetrator's genitals in the presence of a child." (Pen. Code § 11165.1, subd. (b)(5).)

Although Defendant argues that it was under no mandatory duty to report the inappropriate conversation between Jackson and John Doe 2, a triable issue exists as to whether Dale was directly informed by John Doe 2's parents of Jackson's act of masturbation in his presence. (See Allard Decl. ¶ 15, Exh. 14, at p. 25:10-21.) Such an act would fall squarely within CANRA's definition of sexual assault and would impose a duty on the mandated reporter if known or suspected. Given this evidence, Defendant fails to demonstrate that Plaintiff cannot establish the existence of a mandatory duty to report Jackson for reasonable suspicion of abuse under CANRA.

Thus, summary adjudication of this issue is denied.

RULING

Defendant Delphi Schools, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication is GRANTED IN PART as to the negligent hiring issue and is otherwise DENIED.